IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **12.01.2026** THROUGH VIDEO CONFERENCE

CORAM: HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
HON'BLE SHRI VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

Application No	:	CA(CAA)/92(CHE)/2025
Petition No	:	
Name of Petitioner & Name of Respondent	:	Murugappa Water Technology And Solutions Pvt Ltd
Section	:	Sec 230-232 of CA, 2013

ORDER

Present: None for the Applicant.

Vide separate order pronounced in Open Court, the application is disposed of with directions.

Sd/-
[VENKATARAMAN SUBRAMANIAM]
MEMBER (TECHNICAL)

Sd/-
[SANJIV JAIN]
MEMBER (JUDICIAL)

MG

Date: 12.01.2026

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement*

CA(CAA)/92(CHE)/2025

MURUGAPPA WATER TECHNOLOGY AND SOLUTIONS PRIVATE LIMITED,
A COMPANY INCORPORATED UNDER THE COMPANIES ACT, 1956,
HAVING ITS REGISTERED OFFICE AT,
PARRY HOUSE, 43 MOORE STREET, CHENNAI,
TAMIL NADU, INDIA, 600001

… APPLICANT COMPANY / DEMERGED COMPANY 2 / AMALGAMATING COMPANY 2

*Order Pronounced on **12th January, 2026***

CORAM

SANJIV JAIN, MEMBER (JUDICIAL)
VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

For Applicant(s): Senior Counsel Mr. P.H.Arvindh Pandian, Advocates
Pawan Jhabakh Advocates

ORDER

1. Under consideration is a Company Application filed for the approval of Composite Scheme of Arrangement i.e., CA(CAA)/92(CHE)/2025 filed by **MURUGAPPA WATER TECHNOLOGY AND SOLUTIONS PRIVATE LIMITED** ("MWTSPL" or Amalgamating Company 1 or "Applicant"). The Scheme involves four companies viz., the **MURUGAPPA WATER TECHNOLOGY AND SOLUTIONS PRIVATE LIMITED, AMBADI INVESTMENTS LIMITED** ("AIL" or "Amalgamated Company 1" or "Resulting

Company"), **PARRY ENTERPRISES INDIA LIMITED** ("PEIL" or "Demerged Company 1" or "Amalgamated Company 2") and **AMBADI ENTERPRISES LIMITED (**"AEL" or "Demerged Company 2" or "Amalgamating Company 2") and their respective shareholders and creditors under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (hereinafter referred to as the "SCHEME") proposed by the Applicant. The said Scheme is also appended as "***Annexure A1*** of the application.

2. The Applicant in the Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	**PREFERENCE SHAREHOLDERS**	**SECURED CREDITORS**	**UNSECURED CREDITORS**
APPLICANT COMPANY	Dispense with meeting	NA	Prayer For Meeting	Prayer For Meeting

3. The Applicant has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses. The object of the Applicant is set out in **Clause III** of the Memorandum of Association. The brief objects of the Applicant as set out in the Synopsis are extracted hereunder,

> *"The Applicant Company is engaged in the business of design, manufacturing, supply, installation, operation, and maintenance of equipment and systems related to water and wastewater treatment; solutions for membrane systems and Zero Liquid Discharge (ZLD) storage and repacking and supply of chemicals for various water treatment applications including raw water. process water, cooling*

water, boiler water, membrane cleaning, and wastewater, utilizing green chemistry approaches to promote sustainability."

(The charter documents of the Applicant are annexed as ***Annexure A2)***

4. As per the Certificate of Incorporation, the Applicant is a private limited company incorporated under the provisions of Companies Act, 1956 on 29.09.1993. The authorised and paid-up share capital of the Applicant Company as on 31.03.2025 is as follows,

Particulars	**Rupees**
Authorised share capital 22,50,000 equity shares of Rs 10/- each	2,25,00,000/-
Issued subscribed and paid up 2,09,922 equity shares of Rs.10/- each	20,99,220 /-

5. The Applicant has filed the Audited Financial Statements as on date 31.03.2025 and Unaudited Financial Statements as on 30.09.2025. The summary of the financial position of the Applicant as on 31.03.2025, as per the financial statements is provided below:

Particulars	**Amount in INR lakhs**
Net worth	1,03,353.66/-
Revenue from operations	6442.59/-
Financial Assets	1,03,718.47/-
Non-Financial Assets	317.38/-
Financial Liabilities	288.16/-
Non-Financial Liabilities	394.03

(The Financial Statements of the Applicant are annexed as ***Annexure A3*** of the Application typeset)

6. The Board of Directors of the Applicant, vide meetings held on **29.10.2025** has approved the proposed Scheme as contemplated above and the resolutions passed thereon has been placed on record by the Applicant. (The Board Resolution passed by the Applicant is annexed and marked as ***Annexure A4*** of the Application typeset)

7. The rationale and objective of the Scheme as reflected in Clause 3 of the Scheme is reflected as under,

> *"**3. RATIONALE AND OBJECTIVE OF THE SCHEME***
>
> *3.1 The Companies are part of the Murugappa group of companies. AIL, being a systemically important non-deposit accepting core investment company, is engaged in the business of holding, managing and supervising the various strategic investments, held directly or indirectly by AIL, in various operating companies within the Murugappa group, which includes both listed and unlisted companies. AIL is holding a majority of the shareholding in PEIL and whole of the share capital of MWTSPL. The majority shareholding of AIL is held by members of the Murugappa family, and the ultimate majority shareholding in AEL is also held by the said members of the Murugappa family.*
>
> *3.2 The proposed Amalgamations and Demergers contemplated under this Scheme are pursuant to an internal group restructuring of the Murugappa group.*
>
> *3.3 The MWTSPL Amalgamation, PEIL Demerger and AEL Demerger are collectively proposed with an intent to rationalise the group holding structure and increase operational efficiency. Specifically:*
>
> *(1) the benefit of consolidation of financial resources, management and leadership leading to improved internal systems, enhanced business oversight and greater operational efficiency being available;*

1) combining the identified businesses and operations of MWTSPL, AEL and PEIL into AIL will contribute to the profitability of AIL by rationalization of management, strategy and administrative structures,

(iii) the transactions will significantly avoid multiplicity of legal and regulatory compliance requirements thereby resulting in reduction of administrative and operational costs and overheads; and

(iv) the transactions would lead to creation of value to various stakeholders of the Companies, as the combined business would benefit from an increase in scale and wider products and services portfolio.

3.4 The AEL Amalgamation is intended to rationalise the group holding structure and amalgamate AEL (comprising the Remaining AEL Business which remains after the AEL Demerger) into PEIL. It is feasible and efficient to retain certain assets as part of the Remaining AEL Business and amalgamate AEL (comprising the Remaining AEL Business) with PEIL.

3.5 The Scheme would be in the best interest of the Companies and their respective shareholders, employees, creditors and other stakeholders.

3.6 In furtherance of the aforesaid, this Scheme provides for the following:

(i) the amalgamation of MWTSPL/ Amalgamating Company I with AIL /Amalgamated Company 1, by way of merger by absorption and consequent dissolution of MWTSPL/Amalgamating Company I without winding up, the cancellation of the equity shares of MWTSPL/Amalgamating Company I held by AIL/Amalgamated Company 1 ("MWTSPL Amalgamation");

(ii) the transfer by way of a demerger of the PEIL Undertaking to AIL/Resulting Company, the consequent issue of equity shares by AIL/Resulting Company to the shareholders of PEIL/Demerged Company 1 in accordance with the PEIL Demerger Share Entitlement Ratio (as defined hereinafter) ("PEIL Demerger");

(iii) the transfer by way of a demerger of the AEL Undertaking to AIL/Resulting Company, the consequent issue of equity shares by AIL/Resulting Company to the shareholders of AEL / Demerged Company

2 in accordance with the AEL Demerger Share Entitlement Ratio (as defined hereinafter) ("AEL Demerger");

(iv) the amalgamation of AFL/Amalgamating Company 2 (comprising the Remaining AEL Business) with PEIL / Amalgamated Company 2 by way of merger by absorption and consequent dissolution of AEL / Amalgamating Company 2 without winding up and consequent issuance of PEIL Equity Shares to shareholders of AEL/Amalgamating Company 2 in accordance with the AEL Amalgamation Share Exchange Ratio (as defined hereinafter) ("AEL Amalgamation"); and

(v) various other matters consequential or integrally connected therewith,

pursuant to Sections 230 to 232 and other applicable provisions of the Aut in the manner provided for in this Scheme and in compliance with the provisions the IT Act (as defined hereinafter), including Sections 2(1B) and 2(19AA) read with Section 2(41A) thereof."

8. The steps involved in the scheme as per Clause 4 of the Scheme are extracted as under,

"4. OPERATION OF THE SCHEME

4.1 The MWTSPL Amalgamation in accordance with this Scheme shall take effect from the Appointed Date (as defined hereinafter) and will be in compliance with the provisions of Sections 230 to 232 and other applicable provisions of the Act and Section 2(1B) of the IT Act, such that:

(1) All the properties/assets of Amalgamating Company 1, immediately before the MWTSPL Amalgamation, shall become the property/assets of the Amalgamated Company 1, by virtue of the MWTSPL Amalgamation; and

(ii) All the liabilities of Amalgamating Company 1, immediately before the MWTSPL Amalgamation, shall become the liabilities of Amalgamated Company 1, by virtue of the MWTSPL. Amalgamation.

4.2 The PEIL Demerger in accordance with this Scheme shall take effect from the Appointed Date and will be in compliance with the provisions of Sections 230 to 232 and other applicable provisions of the Act and Section 2(19AA) of the IT Act, such that:

(i) All the properties forming part of the PEIL Undertaking as on the Appointed Date shall be transferred to and become the properties of the Resulting Company by virtue of this Scheme;

(ii) All the liabilities relating to the PEIL Undertaking, as on the Appointed Date shall become the liabilities of the Resulting Company by virtue of this Scheme;

(iii) The properties and the liabilities relating to the PEIL Undertaking shall be transferred to the Resulting Company at the value appearing in the books of accounts of the Demerged Company 1 immediately before the PEIL Demerger,

(iv) The Resulting Company shall issue, in consideration of the PEIL Demerger, its equity shares to all the shareholders of the Demerged Company 1 (except to the extent of shares held by the Resulting Company in Demerged Company 1) as on the Demerger Record Date (as defined hereinafter) on a proportionate basis, in accordance with this Scheme;

(v) All the shareholders of the Demerged Company 1 as on the Demerger Record Date shall become the shareholders of the Resulting Company by virtue of the PEIL Demerger,

(vi) The transfer of the PEII. Undertaking to the Resulting Company shall be on a going concern basis; and

(vii) The PEIL Demerger is in accordance with the conditions, if any, notified under sub-section (5) of section 72A of the IT Act, by the Central Government in this behalf.

4.3. The AEL Demerger in accordance with this Scheme shall take effect from the Appointed Date and will be in compliance with the provisions of Sections 230 to 232 and other applicable provisions of the Act and Section 2(19AA) of the IT Act, such that:

(i) All the properties forming part of the AEL Undertaking as on the Appointed Date shall be transferred to and become the properties of the Resulting Company by virtue of this Scheme;

(ii) All the liabilities relating to the AEL Undertaking, as on the Appointed Date shall become the liabilities of the Resulting Company by virtue of this Scheme;

(iii) The properties and the liabilities relating to the AEL Undertaking shall be transferred to the Resulting Company at the value appearing in the books of accounts of the Demerged Company 2 immediately before the AEL Demerger or such other values as required by Accounting Standards specified in the Annexure to the Companies (Indian Accounting Standards) Rules, 2015;

(iv) The Resulting Company shall issue, in consideration of the AEL. Demerger, its equity shares to all the shareholders of the Demerged Company 2 (except to the extent of shares held by the Resulting Company in Demerged Company 2) as on the Demerger Record Date on a proportionate basis, in accordance with this Scheme;

(v) All the shareholders of the Demerged Company 2 as on the Demerger Record Date shall become the shareholders of the Resulting Company by virtue of the AEL Demerger,

(vi) The transfer of the AEL Undertaking to the Resulting Company shall be on a going concern basis; and

(vii) The AEL Demerger is in accordance with the conditions, if any, notified under sub-section (5) of section 72A of the IT Act, by the Central Government in this behalf.

4.4 The AEL Amalgamation in accordance with this Scheme shall take effect from the Appointed Date and will be in compliance with the provisions of Sections 230 to 232 and other applicable provisions of the Act and Section 2(1B) of the IT Act, such that:

(i) all the property/assets of AEL at the time of the AEL Amalgamation comprising the Remaining AEL Business, following the AEL Demerger, shall become the property/assets of the Amalgamated Company 2, by virtue of the AEL Amalgamation; and

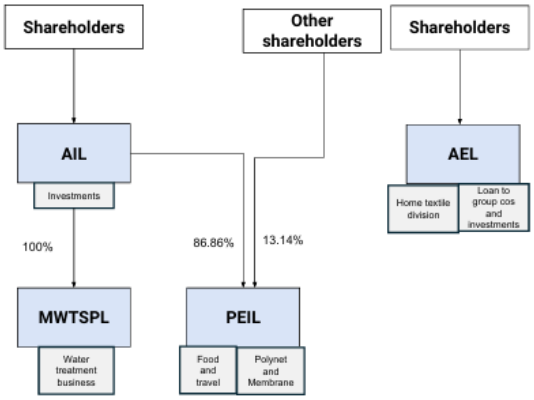
(ii) all the liabilities of AEL at the time of the AEL. Amalgamation, being those relating to the Remaining AEL Business, shall become the liabilities of the Amalgamated Company 2, by virtue of the AEL Amalgamation

(iii) The Amalgamated Company 2 shall issue shares to all the shareholders of the Amalgamating Company 2.

4.5 If any of the terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of Section 2(1B) or Section 2(19AA) of the IT Act with respect to the MWTSPL Amalgamation, PEIL Demerger, AEL Demerger, and/or the AEL Amalgamation, respectively, at a later date, including as a result of any amendment of law or for any other reason whatsoever, the provisions of Section 2(1B) and Section 2(19AA) of the IT Act, shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) and Section 2(19AA) of the IT Act, as the case may be. Such modifications shall however not affect the other parts of the Scheme."

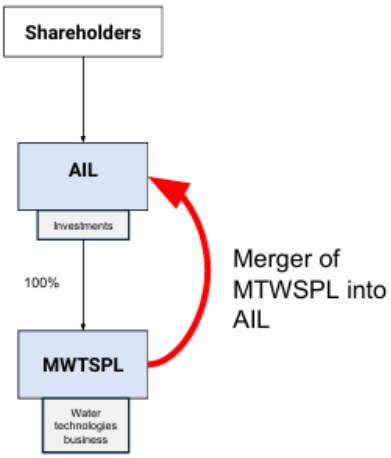
9. The pictorial representation of the scheme is extracted as under,

Existing Structure

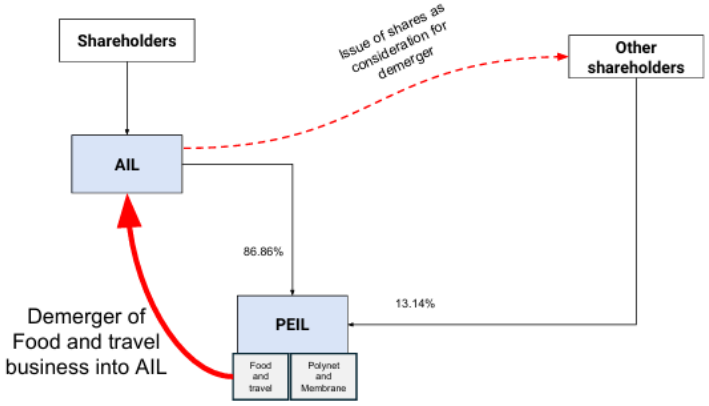


Abbreviation	Name of the Company	Reference to Application	Business
AIL	Ambadi Investments Limited	First Applicant Company	Core Investment Company
MWTSPL	Murugappa Water and Technologies Private Limited	Second Applicant Company	Water treatment business
PEIL	Parry Enterprises India Limited	Third Applicant Company	1) Travel agency 2) Food intermediary products 3) Polynet and membrane business
AEL	Ambadi Enterprises Limited	Fourth Applicant Company	1) Home textile division 2) Loans and Investments to group companies

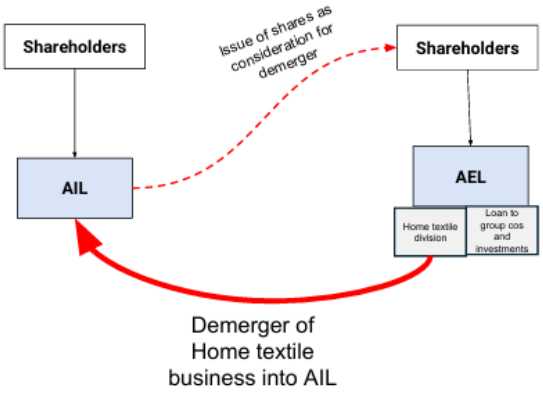
Part C of the Scheme: Amalgamation of MWTSPL into AIL



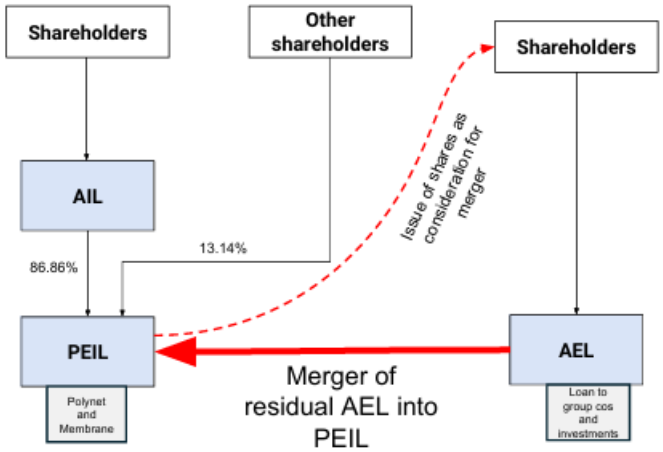
Part D of the Scheme: Demerger of Food and travel business from PEIL into AIL



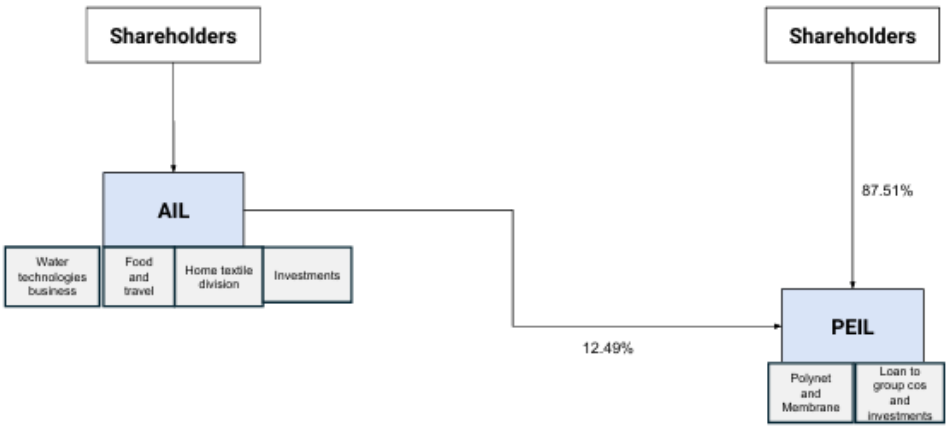
Part E of the Scheme: Demerger of Home textile division from AEL into AIL



Part F of the Scheme: Merger of residual AEL into PEIL



RESULTANT STRUCTURE



10. As per Clause 6 (xxiv) of the Scheme, the Appointed Date is 01.04.2025 or such other date as the Tribunal may direct or allow.

11. The Statutory Auditors of the Applicant have examined the Scheme in terms of provisions of Sec. 230(7) of Companies Act, 2013 and the Rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the Statutory Auditors in this regard is placed at ***"Annexure A10"*** of the typed set of Documents filed along with the application.

12. Taking into consideration the application filed by the Applicant and the documents filed therewith as well as the position of law, this Tribunal issued the following directions: -

I. EQUITY SHAREHOLDERS

(i) There are **Two (2)** Equity Shareholders, whose consent affidavits are placed at **Pgs. 249-261** as ***Annexure A6.*** The Certificate issued by the Chartered Accountant certifying the list of Equity

Shareholders is placed as ***Annexure A5*** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant, that there are **Two (2)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There is **One (1)** Secured Creditor. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed as ***Annexure A7*** of the typed set filed with the application.

(ii) Since the Applicant has sought for directions for the meeting of the Secured Creditors, this Tribunal orders convening, holding and conducting the meeting. Meeting of the Secured Creditors of the Applicant Company is directed to be held on 06.03.2026 at 11.00 AM at Parry House, 5th Floor, 43 Moore Street, Chennai, Tamil Nadu, India, 600001 or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

III. UNSECURED CREDITORS

(i) There are **Two Hundred and Fifty-Five (255)** Unsecured Creditors. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditors is placed as ***Annexure A8*** of the typed set filed with the application.

(ii) Since the Applicant Company has sought for directions for the meeting of the Unsecured Creditors, this Tribunal orders convening, holding and conducting the meeting. Meeting of the Unsecured Creditors of the Applicant Company is directed to be held on 06.03.2026 at 11.30 AM at Parry House, 5th Floor, 43 Moore Street, Chennai, Tamil Nadu, India, 600001 or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

13. The quorum for the meeting of the Applicant Company shall be as follows;

S.No	Class	Quorum	Date and Time of the Meeting
1	Secured Creditors	1	06.03.2026 at 11.00 AM
2	Unsecured Creditors	25	06.03.2026 at 11.30 AM

i) The Chairperson appointed for the meeting of Applicant Company shall be **Pawan Kumar Jain** ***(Mob: 9910384744)***. The Fee of the Chairperson for the aforesaid meeting shall be ***Rs. 1,50,000 (Rupees One Lakh and Fifty Thousand)*** in addition to meeting her incidental expenses. The Chairperson(s) will file the reports of the meeting within a week from the date of holding of the above said meetings

ii) **Mrs. Vinita Varshini** ***(Mob: 987042838)*** is appointed as a Scrutinizer and would be entitled to a fee of ***Rs. 75,000 (Rupees Seventy-Five Thousand)*** for services in addition to meeting incidental expenses.

iii) In case the quorum as noted above, for the above meeting of the Applicant is not present at the meeting, then the meeting shall be adjourned by half an hour, and thereafter the person(s) present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, is filed with the registered office of the applicant companies at least 48 hours before the meeting. The Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be made by the applicant companies to attain at least the quorum fixed, if not more in relation to approval of the scheme.

iv) The meeting shall be conducted as per applicable procedure prescribed under the MCA Circular MCA General Circular Nos. (i) 20/2020 dated 5th May, 2020 (AGM Circular), (ii) 14/2020, dated 08.04.2020 (EGM Circular-I) and (iii) 17/2020 dated 13.04.2020 (EGM Circular-II);

v) That individual notices of the above said meeting shall be sent by the Applicant through registered post or speed post or through courier or e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above any other documents as may be prescribed under the Act or rules may also be duly sent with the notice.

vi) That the Applicant shall publish advertisement with a gap of atleast 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the English Daily "***Business Standard" (All India Edition)*** and ***"Dina Malar" Tamil (Tamil Nadu Edition)*** and ***"Samyukta Karnataka" Kannada (Karnataka Edition)*** in Vernacular stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the respective Applicant Companies.

vii) The Chairperson shall as afore stated be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme.

viii) The companies shall individually send notice to concerned Regional Director, MCA, Registrar of Companies Coimbatore, Reserve Bank of India (RBI) and the Income Tax Authorities as well as other Sectoral regulators who may have significant bearing on the operation of the applicant companies or the Scheme *per se* along with copy of required documents and

disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

ix) The Applicant shall further furnish copy of the Scheme free of charge within 1 day of any requisition for the Scheme made by every creditor or member of the applicant companies entitled to attend the meetings as aforesaid.

x) The Authorized Representative of the Applicant shall furnish an affidavit of service of notice of meetings and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meetings.

xi) All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

14. Accordingly, the Application stands **disposed of**.

-Sd-	**-Sd-**
VENKATARAMAN SUBRAMANIAN	**SANJIV JAIN**
MEMBER (TECHNICAL)	MEMBER(JUDICIAL)